

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO**

Civil Action No. 09-cv-02977-REB-KLM

IOWA PACIFIC HOLDINGS, LLC,

Plaintiff,

v.

NATIONAL RAILROAD PASSENGER CORPORATION,

Defendant.

FINAL JUDGMENT

This Final Judgment is entered pursuant to and in accordance with Fed. R. Civ. P. 58(a) and the verdict [#173-5] of the jury and the oral order in open court entered by Judge Robert E. Blackburn on July 7, 2011, which verdict and order are incorporated herein by this reference.

THEREFORE, IT IS ORDERED as follows:

1. That plaintiff, Iowa Pacific Holdings, LLC, proved by a preponderance of the evidence the existence of an oral contract between it and defendant, National Railroad Passenger Corporation (Amtrak), concerning the Denver to Winter Park Ski Train for the 2009-2010 ski season;
2. That plaintiff, Iowa Pacific Holdings, LLC, proved by a preponderance of the evidence that defendant, National Railroad Passenger Corporation, actually or anticipatorily breached its oral contract with plaintiff;
3. That plaintiff, Iowa Pacific Holdings, LLC, proved by a preponderance of the

evidence that defendant's breach of the oral contract caused damages to plaintiff;

4. That defendant, National Railroad Passenger Corporation, did not prove by a preponderance of the evidence its affirmative defense that there was a material condition in the oral contract that did not occur or was not satisfied for a reason other than one that was attributable to or the fault of defendant, and therefore, that defendant was excused from performing its contractual obligations;

5. That plaintiff, Iowa Pacific Holdings, LLC, is awarded reliance damages for breach of oral contract as follows: \$829,325.00 (for capitalization and equipment); \$425,000.00 (for advertising); and \$425,000.00 (for labor); less \$529,375.00 for its failure to mitigate damages, for a total of \$1,149,950.00; and

6. That post-judgment interest shall accrue at the rate of 0.19 per cent from the date of entry of judgment.

7. That costs shall be awarded to the plaintiff and taxed as prescribed under Rule 54(b)(1) and Local Rule 54.1.

DATED at Denver, Colorado this 13th day of July, 2011.

FOR THE COURT:

GREGORY C. LANGHAM, CLERK

s/ Edward P. Butler
Edward P. Butler, Deputy Clerk

APPROVED BY THE COURT:


Robert E. Blackburn
United States District Judge